

Line 6

Case Name: *Adedayo Abioye v. Abraham Chapa, et al.*

Case No.: 25CV474504

See Line 5 above for complete tentative ruling on Defendants' Demurrer and Defendants' Motion to Strike.

Line 7

Case Name: *Schechinah Pritchard v. Starbucks Corporation, et al.*

Case No.: 25CV474626

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Starbucks Corporation (“Starbucks”) moves under Code of Civil Procedure Sections 435 and 436 to strike the following allegations from Plaintiff’s Complaint against Starbucks:

- Plaintiff’s Request for Punitive Damages (Complaint ¶¶ 37-40, 51-53, Prayer for Relief ¶ D).

Notice of Motion (the “Motion”) at 1:26-2:2 (filed: Dec. 9, 2025).

The Motion is made on the grounds that the language sought to be stricken is “irrelevant, false, or improper” and/or is “not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court” within the meaning of Code of Civil Procedure Section 436, and on the grounds that Plaintiff has not stated fact sufficient to support an award of punitive damages as set forth in Civil Code Section 3294(b), which requires specific facts showing how Starbucks’ officers, directors or managing agents authorized or ratified the conduct of its employees or agents or had advance knowledge of an unfitness of an employee and employed them with a conscious disregard of the rights and safety of others. Motion at 2:3-11.

The Motion came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

In her Complaint filed on September 9, 2025, Plaintiff alleges that on July 27, 2024, she sustained injuries after an employee of Defendant served her coffee through Defendant’s drive-thru window. (Complaint, ¶ 23.) While Defendant’s employee was handing Plaintiff her beverage, the lid dislodged and spilled dangerously hot coffee onto Plaintiff’s lap. (*Ibid.*) Plaintiff further alleges that Defendant’s Safety and Security Manual warned that skin burns at 140 degrees Fahrenheit, yet Defendant’s internal policy was to serve hot coffee to customers at a temperature at or near 190 degrees Fahrenheit. (Complaint, ¶ 22.) Additionally, Plaintiff alleges that Defendant “had been receiving at least 80 complaints per month from customers who reported lid failures, lids popping off, lid leaks, burn injuries, and/or other incidents involving spill exposures.” (Complaint, ¶ 21.)